

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4-Economic Stability (ES)
	Part No./Name	F-Case Maintenance (FITAP)
	Section No./Name	F-300-FITAP Intentional Program Violations (FITAP)
	Document No./Name	F-310-FITAP Definitions
	Effective Date	January 1, 2016

I. STATEMENT OF POLICY

INTENTIONAL PROGRAM VIOLATION (IPV) OCCURS WHEN A CLIENT, FOR THE PURPOSE OF ESTABLISHING OR MAINTAINING ELIGIBILITY OR FOR INCREASING OR PREVENTING A REDUCTION IN BENEFITS, INTENTIONALLY:

- MAKES A FALSE OR MISLEADING STATEMENT, OR MISREPRESENTS, CONCEALS, OR WITHHOLDS FACTS; OR
- COMMITS AN ACT INTENDED TO MISLEAD OR MISREPRESENT, CONCEAL OR WITHHOLDS FACTS; OR
- Propounds a falsity.

INTENTIONAL PROGRAM VIOLATION ALSO OCCURS WHEN A CLIENT USES AN EBT CARD IN A WAY THAT IS PROHIBITED BY THE PROGRAM AND THE AGENCY HAS DOCUMENTARY EVIDENCE TO SUPPORT A CHARGE OF PROHIBITED USE OF AN EBT CARD. Prohibited use includes:

- The use of cash benefits in a electronic benefit transfer transaction in any of the following places in a liquor store, gambling casino or gaming establishment, any retail establishment that provides adult oriented entertainment in which performers disrobe or perform in an unclothed state for entertainment purposes, any adult bookstore, adult paraphernalia store, or sexually oriented business, any tattoo, piercing, or commercial body art facility, any nail salon, jewelry store, amusement or video arcade, any bail bonds company, any night club, bar, tavern, or saloon, any cruise ship, psychic business, or any establishment where persons under age 18 are not permitted are prohibited.
- The purchase of an alcoholic beverage, a tobacco product, a lottery ticket or jewelry with an Electronic Benefit Transfer (EBT) card is prohibited.

*** Note: Policy is applicable for all cash cases (FITAP/KCSP). ****

II. PROCEDURES

There are no procedures associated with this policy.

III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

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IV. REFERENCES

[LAC, Title 67: Part III., Subpart 2. Family Independence Temporary Assistance Program \(FITAP\), Chapter 12. Application, Eligibility, and Furnishing Assistance, Subchapter B. Conditions of Eligibility, §1259](#)

[LAC, Title 67: Part III., Subpart 13. Kinship Care Subsidy Program \(KCSP\), Chapter 53. Application, Eligibility, and Furnishing Assistance, Subchapter B. Conditions of Eligibility, §5351.](#)